



**DEPARTMENT OF VETERANS
AFFAIRS**

Office of Acquisition and Logistics
National Acquisition Center
P.O. Box 76
Hines, IL 60141

Justification for an Exception to Fair Opportunity
FAR 16.505(b)(2)(i)(B) Only One Capable Source

(1) Identification of the agency and the contracting activity.

This Justification for an Exception to Fair Opportunity is on behalf of the Department of Veterans Affairs (VA), Veterans Administration Medical Center (VAMC) Wilkes-Barre, PA. VISN 1, and will be executed by VA's National Acquisition Center (NAC) High Tech Medical Equipment Ordering Division (HTME), located in Hines, Illinois.

(2) Nature and/or description of the action being approved.

This activity proposes to issue a sole-source delivery order against Indefinite Delivery Indefinite Quantity (IDIQ) contract VA797H-17-D-0024 awarded to GE Precision Healthcare LLC on March 28, 2017, for the purchase of the Definium 656 HD digital radiographic overhead tube suspension (OTS) system. This unit will be used to expand the Radiology Department capabilities to perform highly automated, efficient imaging exams that will be provided by this upgrade for VISN 1, VAMC Wilkes-Barre, PA healthcare system.

(3) A description of the supplies or services required to meet the agency's needs, including the estimated value.

This upgrade request is for GE Precision Healthcare LLC Definium 656 HD digital radiographic overhead tube suspension (OTS) system. The Definium 656 HD is a versatile, digital radiographic, overhead tube suspension (OTS) system powered by GE Precision HealthCare's FlashPad HD high resolution detectors and Helix advanced image processing software. Combining the highest levels of motorization, automation, assistive intelligence, & advanced applications with fast movement and high weight capacity, this system acts like a personal assistant to help deliver consistent, highly automated, efficient imaging exams. This unit can be flexibly configured to meet the VA's needs and room size requirements for the Radiology Department and includes a 12-inch tube head touch screen console with full functionality and enabling in-room workflows. This request will include associated software and hardware that are affected by this upgrade.

The total estimated value is \$370,637.04.

(4) An identification of the exception to fair opportunity (see 16.505(b) (2)) and the supporting rationale, including a demonstration that the proposed contractor's unique qualification or the nature of the acquisition requires use

of the exception cited. If the contracting officer uses the logical follow-on exception, the rationale shall describe why the relationship between the initial order and the follow-on is logical (e.g., in terms of scope, period of performance, or value).

The order will be issued on a sole-source basis in accordance with FAR 16.505(b)(2)(i)(B). Purchase order 693-B50014; delivery order 36A79725N0155 will be awarded under IDIQ contract VA797H-17-D-0024. The VAMC Wilkes-Barre, PA requires that all equipment be compatible and compliant for patient care and only one awardee can provide the supplies or services to meet the needs of the Government and that is GE Precision Healthcare LLC. GE Precision Healthcare LLC is the original equipment manufacturer (OEM) and the only vendor capable of providing this equipment. This upgrade has proprietary software and hardware which only the original vendor can secure, implement, and support. The new system is compatible with the existing equipment and will work as required without any additional costs to the facility to replace any existing infrastructure. No other manufacturer can provide this service without losing compatibility and functionality of the entire system.

(5) A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

All items are currently on GE Precision Healthcare LLC IDIQ contract VA797H-17-D-0024. The prices under the GE Precision Healthcare LLC IDIQ contract remain the same from when they were awarded. The quoted price for each item is at or below the IDIQ not-to-exceed contract price, and the IDIQ contract pricing has been determined fair and reasonable by a contracting officer in accordance with Subpart 15.4.

Any other facts supporting the justification.

This unit will replace the General Electric (GE) Digital X-Ray system that has reached the end of its service life and is no longer supported by the manufacturer. Based on market research, this will eliminate the need for extensive turnkey construction and the associated costs for any other unit. As a result, the hospital will realize significant savings of \$199,960.00, the amount previously estimated for construction and installation expenses. This drop-in installation will also reduce delays, simplify the deployment process, and allow for quicker integration into clinical operations, which is crucial for maintaining patient care without disruption. The proposed replacement Digital X-ray system from (GE) is a drop-in unit and is fully compatible with the existing infrastructure.

(6) A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made.

Future requirements will be handled on a case-by-case basis and all attempts will be made to provide fair opportunity to all schedule holders.

- (7) **The contracting officer's certification that the justification is accurate and complete to the best of the contracting officer's knowledge and belief.**

By signing this justification, the requiring activity hereby certifies that the justification is accurate and complete to the best of their knowledge.

- (8) **Evidence that any supporting data that is the responsibility of the technical or requirements personnel (e.g., verifying the Government's minimum needs or requirements or other rationale for an exception to fair opportunity) and which form a basis for the justification have been certified as complete and accurate by the technical or requirements personnel.**

The technical information contained in the proposal was reviewed and certified by the facility Biomedical Engineering and clinical end user and determined to meet the governments minimum requirements. By signing this justification, the requiring activity hereby certifies that the justification is accurate and complete to the best of their knowledge.

- (9) **A written determination by the approving official that one of the circumstances in (b)(2)(i)(A) through (F) of this section applies to the order.**

Based on the information contained herein, a determination has been made that this requirement meets the exception at FAR 16.505(b)(2)(i)(B) because only one awardee can provide the supplies or services required at the level of quality required. The supplies or services ordered are unique and or highly specialized.

CERTIFICATION AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION:

Pursuant to FAR 16.505(b)(2)(ii)(B)(9), I certify that any supporting data that is my responsibility and which forms a basis for the justification is complete and accurate to the best of my knowledge and belief.

Prepared by:

Stanley Benoit, WBVA Biomed Rep.
3/21/2025

Stanley Benoit
Biomedical Engineer
VISN 04

CONTRACTING OFFICER CERTIFICATION:

Pursuant to FAR 16.505(b)(2)(ii)(B)(8), I certify that the justification is complete and accurate to the best of my knowledge and belief.

Ann English

Contracting Officer

VA National Acquisition Center – Hines

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LaTonya L. Whiteside

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